

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	28-07-2026 11:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	28-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Mines
विभाग का नाम/Department Name	Hindustan Copper Limited
संगठन का नाम/Organisation Name	Hindustan Copper Limited
कार्यालय का नाम/Office Name	Kolkata Corporate Office
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :panduranga_lm@hindustancopper.com Buyer Email id: buycon29.hcl.jh@gembuyer.in
वस्तु श्रेणी /Item Category	Facility Management Services - LumpSum Based - Mosabani Concentrator Plant; Rebabbitting of wornout Trunion Bearing of Ball Mill of Mosabani Concentrator Plant; Consumables to be provided by service provider (inclusive in contract cost)
अनुबंध अवधि /Contract Period	3 Month(s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	1500000
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	35400

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	11

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and

Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

AGM (Finance)

Hindustan Copper Limited, Indian Copper Complex, At Post- Moubhandar, Ghatsila, Dist- East Singhbhum, Jharkhand-832103

(Hindustan Copper Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

- 1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for % (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM_No.1_4_2021_PPD_dated_18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
- 2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within L-1+ 15% of margin of purchase**

preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

Price Breakup Format for reference only - [1783401856.xlsx](#)

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Details of the premise:[1783401833.pdf](#)

Scope of work:[1783401867.pdf](#)

**Facility Management Services - LumpSum Based - Mosabani Concentrator Plant;
Rebabbitting Of Wornout Trunion Bearing Of Ball Mill Of Mosabani Concentrator Plant;
Consumables To Be Provided By Service Provider (inclusive In Contract Cost) (1)**

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Type of Premises	Mosabani Concentrator Plant
Type of services required	Rebabbitting of wornout Trunion Bearing of Ball Mill of Mosabani Concentrator Plant
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)
Service component	As per ATC
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषित/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	Nisha Murmu	832103,Post- Moubhandar, Sub-division - Ghatsila, Dist-East-Singhbhum, Jharkhand-832103	Project / Lumpsum Based	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. Forms of EMD and PBG

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

Hindustan Copper Limited

Account No.

00000011524102778

IFSC Code

SBIN0001484

Bank Name

State Bank of India

Branch address

Moubhandar, Dist. East Singhbhum, Jharkhand-832103

Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

3. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

5. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Sub: Rebabbitting of wornout Trunion Bearing of 8' X 12' Ball Mill of Mosabani Concentrator Plant

through GeM Portal

Dear Sirs,

Online Tenders are invited through above Portal in Two Part Bid system for supply of following services

at our Indian Copper Complex Unit, Ghatsila, Dist. East Singhbhum, Jharkhand-832103: -

Sr. No.	Item Code	Description of Job	Unit	Qty.
1	905520854	Rebabbitting of wornout Trunion Bearing of 8 ' X 12' Ball Mill including transportation	NUMBER	6

Important Note to Bidders:

1. L-1 will be decided on overall L-1 basis. Price will be firm, fixed and final during the entire execution period of contract.
2. Price submission by the bidders either in hard copy or in the techno-commercial Part-I bid or in their letter head shall be summarily rejected.
3. Only Payment term 30 days' credit (w r t submission of duly verified bills) will be accepted.
4. Bidders must submit their rate for the above line items according to enclosed price submission pdf /price submission excel and to upload in financial bid. Total price should match while submission in GeM as well as submission in pdf file/excel file.
5. Bidder has to refer General Terms and Conditions (Clause No. 6. i) in GeM and quote their price inclusive of GST as per Price BOQ with grant total including GST Value.
6. Note- Insurance Surety Bonds (ISB) issued by Indian Public Sector or Private Sector Insurance Companies who comply with the following conditions:
 - a. Having net worth more than (10) times the value of Insurance Surety Bond required to be submitted to HCL, with minimum Net Worth of Rs. 1000 Crore.
 - b. Has Positive Profit Before Tax (PBT).
 - c. Has minimum AAA credit Rating by SEBI registered authorised credit rating agencies.
7. Drawing at Annexure-VIII is provided at Buyer Added Bid Specific ATC, all bidders are requested to kindly go through the ATC uploaded.

Annexure-I

(SOW)

SCOPE OF WORK:

The following work is to be attended by bidder in the rebabbitting/ reconditioning of White metal bearings.

1. The damaged white metal lining is to be completely removed from the casing of the bearing.
2. Necessary cleaning/ Surface preparation to be done of the inner surface of the bearing.
3. Re-babbitting is to be done with virgin white metal as recommended IS-25 grade-20.
4. The Babbit metal is as follows: IS-25 grade-20 White Metal
5. After rebabbitting/ lining, extra metal is to be machined by suitable lathe or Boring Machine & the finished dimensions as per our drawing mentioned in tender documents. Drawing attached is only for price calculation. After placement of order, Party may visit site to take actual dimension for proper fitting.
6. After finishing machining job, New oil grooves have to be made and polishing has to be done.
7. The transportation of worn-out bearings from the Mosabani Plant to the party's workshop, and their return to the Mosabani Plant after rebabbitting, shall be within the bidder's scope. The movement will

be carried out in a staggered manner, with lifting and delivery of 2 bearings (Feed and Discharge) will be with in 30 days. After delivery of the first 2 reconditioned bearings, the next 2 bearings will be lifted. The total completion period for all 6 bearings shall be 90 days. delivery of all bearings shall be strictly in accordance with the date mentioned in GeM Work Order.

8. Re- conditioned bearing shall be duly packed.

Annexure-II

(Special T & C)

SPECIAL TERMS & CONDITIONS OF WORK:

1. INDEMNITY BOND:-Before lifting the items for the rebabbitting the successful tenderer have to execute an Indemnity Bond equivalent to contract value on Non-Judicial Stamp Paper on the prescribed perform duly notarized, before lifting the items for rebabbitting towards the safe custody of the material taken for repairing. Moreover, due authorization is to be submitted for the personal for lifting the bearings.

2. SUBMISSION OF BILL: -The bill/s for the work carried out by the successful tenderer shall have to be submitted to this office in triplicate

along with the following documents for processing

a. Copy of Dispatch Challan under which the Contractor has taken the component/s for repairing.

b. Copy of the Contractor Challan under which the Contractor has delivered the repaired component/s to HCL/ICC.

c. Satisfactory completion report of the Engineer In-charge.

3. Standard PBG clause will be applicable.

4. After delivery of each batch of bearings, the supplier/contractor must submit the following documents:

i) Dimensional inspection report and Fitment Guarantee certificate.

ii) Test Report - White metal chemical analysis, from NABL accredited Government Laboratory.

iii) Guarantee Certificate - 06 months.

Annexure-III

(PQC)

PRE-QUALIFICATION CRITERIA:

1. Parties must have past experience of execution of rebabbitting white metal bearings jobs.

2. Party must have to provide executed order copy/copies of rebabbitting white metal bearings in PSU/Government Organisations/Listed Organisations (Having CIN).

3. The value of executed Order mentioned in PQC point 02 within last seven year ending last day of the month previous to the date of publication of the Enquiry is as follows:

i) One executed Order copy of Basic value not less than Rs 12.0 Lakhs

OR

ii) Two executed Order copy of Basic value not less than Rs 7.5 Lakhs each

OR

iii) Three executed Order copy of Basic value not less than Rs 6.0 Lakh each

4) The Bidder shall have positive net worth as per their latest audited financial statement. Relevant documentary evidence including copies of Annual Report, containing Profit & Loss Statement and Balance Sheets for immediate preceding three (3) consecutive accounting years ending Mar 2025 or the last date on which the accounting year ends shall be furnished together with the Bid. The bidder should have an average annual turnover of Rs 4.5 Lakhs, in the last three preceding financial years. Balance sheet, Profit & Loss statement of Bidder should be signed by qualified Chartered accountant. The Audited account should contain UDIN, FRN and MRN of the CA/ CA Firm.

5) Documentary evidence in support of above must be submitted along with the technical offer without which the offer could not be considered.

Annexure-III

(Terms and Conditions)

- I) Terms & Conditions**
- 1. EARNEST MONEY DEPOSIT (EMD): -** The offer should accompany with an amount of **Rs 35400/- (Rupees Thirty Five Thousand Four Hundred only)** towards Earnest Money Deposit is to be submitted in RTGS/NEFT preferably insurance surety bonds (Annexure-VI) or in the form of Bank Guarantee format (Annexure-IV) from any Scheduled Commercial Bank except Co-operative and Gramin Bank may be submitted in hard copy before scheduled last date and time of tender submission in favour of "Hindustan Copper Limited" payable at Moubhandar /Ghatsila. Offers without Earnest Money will be rejected outright. Similarly, EMD in any other form will not be accepted. The EMD provided by the tenderers along with the tenders should be returned to the unsuccessful tenderers within thirty days from the date of opening of price bid / placement of purchase order/signing of the job contract, whichever is earlier.

However, SSI units registered with NSIC are exempted from payment of EMD against valid documentary proof, which has to be submitted along with Techno-Commercial Bid.

The following are exempted from submission of EMD

(i)Public Sector Undertakings /Govt. Dept./Govt. Institutions

(ii)Micro and Small Enterprises registered with Districts Industries Centers (DICs) / Khadi & Village Industries Commissions (KVIC) / Khadi & Village Industries Board (KVIB) / Coir Board/ NSIC/ Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium Enterprises up to the extent of their monetary limit. For MSEs, the exemption from submission of EMD is to be granted only for the items for which they are registered with the concerned authorities.

(iii)Original Equipment Manufacturers (OEMs).

Our Bank Details is as follows:

State Bank of India.	IFSC CODE- SBIN0001484
Branch- Moubhandar.	Branch Code- 001484
Dist. East Singhbhum	A/C. No. 00000011524102778
Jharkhand-832103.	
Our GST No : 20AAACH7409R1ZF	

2. The rates quoted should be fixed for the entire period of the contract and inclusive of all taxes and duties. Further, PARTIES SHOULD CLEARLY MENTION IF GST IS EXTRA AND ALSO PROVIDE THE GST RATE, OTHERWISE IT WILL BE CONSIDERED THAT RATE IS INCLUSIVE OF GST.
3. **ESCALATION OF PRICE:** The rate shall remain firm during the entire period till the completion of the work. No escalation will be allowed whatsoever may be the reason.
4. **PERIOD OF CONTRACT:** The contract shall be effective for Three (03) Month i.e. 90 days from the date of commencement of work. Commencement of work will be strictly in accordance with the date mentioned in GeM Work Order.
5. **ACCEPTANCE OF THE WORK ORDER/CONTRACT:** If the work order is placed on the successful tenderer as a result of offer submitted on the due date of opening the successful tenderer would have to return the duplicate copy of the same to this office after affixing your signature with seal within 7 days of the receipt of the work order as a token of your acceptance. If we do not receive the same within 7 days we will presume that the successful tenderer have accepted the work order and the contract is binding on the successful tenderer.
6. **INSPECTION:** The inspection of the work done will be done by our engineer whose decision shall be final and binding to the contractor or during execution of the entire work. The bearing shall be finally inspected on receipt at HCL/ICC end only.
7. **PAYMENT:** Payment is due after 30 days after receipt of bill complete in all respect. Payment shall be made against submission of Bills subject to proper certification by the Engineer in Charge. The company shall release the payment electronically.

The payment thereon shall be released by e-payment/RTGS payment within 30 days of presentation of bills complete in all respects. However, the statutory deductions like Income tax, etc. shall be made before making the payment.

8. **SUBMISSION OF BILL:** - The bill/s for the work carried out by the successful tenderer shall have to be submitted to this office in triplicate along with the following documents for processing
 - a. Copy of Dispatch Challan under which the Contractor has taken the component/s for repairing.
 - b. Copy of the Contractor Challan under which the Contractor has delivered the repaired component/s to HCL/ICC.
 - c. Satisfactory completion report of the Engineer In-charge.

9. PERFORMANCE BANK GUARANTEE:

- 9.0 The successful bidder, hereinafter called the Contractor shall be required to deposit 10% of the total Work Order value for the contract (Inclusive of all, on overall value) for Performance Bank Guarantee. Out of this, the initial Security Deposit will amount to 5% of the total Work Order value including GST. It is to be deposited in RTGS/NEFT preferably or Insurance Surety Bond (Annexure-VII) or Fixed Deposit Receipt/ in the shape of Bank Guarantee (Annexure-V) from a Scheduled Commercial Bank (except Co-Operative and Gramin Bank) as Performance Bank Guarantee within 30 (Thirty) days of issue of L1 / Work Order, whichever is earlier. The BG shall be valid **Eleven (11) Months (i.e. period of contract = 3 months + guarantee period= 6 months + BG should be valid for a period of 60 (sixty) days beyond the date of completion of all contractual obligations)** from the date of work order. The contractor would be required to extend the validity of bank guarantee from time to time to as per provision of the Purchase Order.

Successful bidder shall deposit penal interest on a pro-rata basis on account of any delay towards submission of Security Deposit amount after assigned period of 30 days of issue of LOI/Work Order.

- 9.1 Payment to the contractors shall be kept withheld till receipt of Performance Bank Guarantee. The payment to the Contractor as per terms of the contract shall be effected only after the required Performance Bank Guarantee has been submitted by the Contractor.
- 9.2 The Security Deposit equivalent to the balance 5% of the total Contract/ Work Order value including GST will be recovered from the progressive bills of the contractor @10% from each RA Bill.
- 9.3 The Performance Bank Guarantee shall bear no interest and refund will be as per provision of the Contract.
- 9.4 The method of submission of Bank Guarantee is as below:
- 9.4.1 The bank guarantees issued by the issuing bank on behalf of the successful bidder in favour of Hindustan Copper Limited (HCL) shall be in hard copy in original on stamp paper as well as Structured Financial Messaging System (SFMS).
- 9.4.2 HCL has chosen State Bank of India to act advising/beneficiary bank of HCL. The bank issuing the guarantee should choose this bank to send confirmation through SFMS.
- 9.4.3 The details of beneficiary (i.e. HCL) for issue of bank guarantee through SFMS platform is as furnished below:

Our Bank Details is as follows:	
State Bank of India.	IFSC CODE- SBIN0001484
Branch- Moubhandar.	Branch Code- 001484
Dist. East Singhbhum	A/C. No. 00000011524102778
Jharkhand-832103.	
Our GST No : 20AAACH7409R1ZF	

- 9.4.4 The Successful bidders are required to take note of it that above particulars are to be incorporated by the issuing bank properly while issuing the Bank Guarantee under SFMS mode to avoid any future problem in accepting the BGs.
- 9.4.5 The Guarantor (BG issuing bank) shall send information about issuance of this Guarantee through SFMS gateway to the State Bank of India Branch- Moubhandar (IFSC- SBIN0001484), to aid in the process of confirmation of Bank Guarantee.
- 9.4.6 The BG shall also have a clause that "The BG shall be operable including encashment at issuing bank's any local branch in Ghatsila / Jamshedpur"
- 9.4.7 The Original Bank Guarantee issued by the outstation bank shall be sent by the Issuing Bank to the Hindustan Copper Limited, Indian Copper Complex at Ghatsila by Speed Post /Registered Post (AD).
- 9.5 The Company shall be at liberty to deduct and appropriate from the Performance Bank Guarantee such penalties and dues as may be payable by the Contractor under the contract and the amount by which the Performance Bank Guarantee shall get diminished will be made good by further deduction from the Contractor's subsequent bills in the same manner as aforesaid until the security deposit is restored to its full limit mentioned above.
- 9.6 The Company shall have the full right to forfeit and appropriate the security deposit on breach of any of the terms and conditions laid down herein or will be applicable in future, without prejudice to the rights of the Company or otherwise available under the law.
- 9.7 Any dues of the Company against the Contractor under the contract resulting from award of work to some other agency at the risk and cost of the Contractor shall be adjustable against the security deposit and if SD is insufficient, the same shall be recovered from the Contractor.
- 9.8 In case of termination of the contract by the Contractor, the Company shall have the right to forfeit the Performance Bank Guarantee.
- 9.9 On due and satisfactory performance and completion of the contract in all respect and settlement of

f final bills, the Performance Bank Guarantee will be returned to the Contractor without any interest on presentation of an absolute No Demand Certificate in the form as may be prescribed by the Company.

- 9.10 In case of repeat order placed on the successful tenderer, subject to their satisfactory performance, the validity of SD provided for the original order shall be extended suitably by the successful tenderer to cover the additional quantity awarded in the repeat order. The same shall also be applicable in case Option Clause is invoked.
- 9.11 The Performance Bank Guarantee should remain valid for a period of 60 (sixty) days beyond the date of completion of all contractual obligations of the supplier/contractor, including warranty obligations.
- 9.12 The Performance Bank Guarantee will be forfeited and credited to HCL's account in the event of a breach of contract by the contractor. The Performance Bank Guarantee shall be forfeited in case the successful bidder fails to honour contractual obligations. Performance Bank Guarantee shall be refunded to the contractor without interest, after successful performance and completion of the contract in all respects but not later than 60 (sixty) days of completion of all obligations including the warranty under the contract, subject to recovery of claim if any.
- 9.13 Performance Bank Guarantee shall not apply to the: 1) Public Sector Undertakings, 2) Government departments/Government institutions and 3) OEMs.

10. GST COMPLIANCE:

"GST will be paid extra by HCL to be claimed in the bills so that HCL can avail Input Credit Tax for the same. No subsequent claim on this account will be entertained by HCL. The GST shall be deposited with the Government by the contractor/supplier in accordance with the statutory provisions of the GST Law. Further, the contractor/supplier agrees that he shall maintain high GST compliance rating track record at any given point of time and consents to the following:

a) The details of outward supplies made by the contractor/supplier to HCL will be uploaded in Form GSTR-1 by 11th of the month following the month/quarter for which the return is to be filed.

b) Once contractor/supplier has uploaded the details of outward supplies in Form GSTR- 1, contractor/supplier agrees to file the return in Form GSTR-3B by 20th of the month succeeding the month/quarter for which return is to be filed without any delay.

c) Wherever contractor/supplier is required to issue e-invoice containing all the particulars as specified in Form GST INV-01 in terms of Rule 48(4) of the CGST Rules, it is agreed that contractor/supplier will comply with such e-invoicing requirements.

d) In case the Input Tax Credit of GST is denied or demand is recovered from HCL on account of any non-compliance by contractor/supplier, including non-compliance with e-invoicing provisions, delay or non-filing of Form GSTR-1 and Form GSTR- 3B, non-payment of GST charged and recovered, contractor/supplier shall indemnify HCL in respect of all claims of tax, penalty and/or interest, input tax credit, loss, damages, costs, expenses and liability that may arise due to such non-compliance

e) Notwithstanding any other clause of the tender document the payment to the contractor/supplier shall be made only upon invoices being reflected in FOMR GSTR-2A/2B of the relevant month."

- 11. TDS:** Tax under Income Tax Act and Goods and Service Tax Act shall be deducted wherever applicable at the time of payment.
- 12. RESOURCEFULNESS:** Since the tendered job is to be carried out as per strict time schedule, it is imperative that the prospective bidder is resourceful and has adequate experience to do the job.
- 13. DETENTION OF EQUIPMENT AND IDLE LABOR:** HCL/ICC will not pay detention charges and also any claim towards idle wages/hours due to any reasons, whatsoever.
- 14. OFFLOADING OF CONTRACT:** No part of this contract nor any share or interest therein shall in any manner or degree be of bought out items shall be carried out by the party at their works.
- 15. COMPENSATION:** HCL/ICC shall not be liable for or in respect of any damage or compensation payable under law in consequence of any accident / injury or death to workmen or employee or other per

sons in employment under you during the execution of this contract.

16. CONTRACT SUB- LETTING:

Sub-letting of the contract to any third party / agency will not be permitted.

17. HCL'S DISCRETION:

HCL reserves the right to reject any or all the tenders without assigning any reasons whatsoever.

18. CLARIFICATION OF SEEKING SHORTFALL DOCUMENTS FROM BIDDERS:

The company reserves its right to seek any shortfall information/documents only in case of historical documents that pre-existed on the last date of bid submission, and which have not undergone change since then. It is clarified that any historical/pre-existed documents as on or before the last date of bid submission can be treated as shortfall documents for meeting the pre-qualification criteria and other terms & conditions of the ATC. Historical documents are those pre-existed documents available with the bidder as on the last date of bid submission, irrespective of the documents uploaded/submitted by the bidder in the bid submitted.

19. RISK & COST:

- (i) In case the Contractor fails to execute the work as per the terms & conditions of the awarded work order after start of work, the Company reserves the right to award the contract for balance work at the Risk & Cost of the Contractor.
- (ii) In case the bidder backs out after the bid opening after the opening of Techno-Commercial bid/Price bid in two bid system. They will be suspended for next Six (06) Months from the date of issue of suspension letter for participation in the future tender of HCL/ICC.
- (iii) In case the Contractor fails to start the work after award of Work Order within the time frame stipulated in the Work Order, suitable penal actions will be taken against Contractor as decided by the Company, including debarment, etc.

20. DEDUCTION OF INCOME TAX: Income Tax under Section 194 (c) of I.T. Act or as applicable from time to time shall be deducted at source from the bills of the Contractor.

21. CENTRAL & STATE GOVT. ACTS: The Contractor shall abide by all the Acts and Regulations relevant to this work, of Central and State Govt. and Rules framed there under from time to time and also be responsible for any compensation / claim/ penalty payable as a consequence due to any accident / default or any other reasons whatsoever.

22. STATUTORY REGULATIONS: - The work, dispatch and delivery shall be arranged by the contractor in strict conformity with the all applicable Statutory Regulations including provisions of Industries Development and Regulations Act, 1951 and any amendment thereof as applicable from time to time. HCL disowns any responsibility for any irregularities or contraventions of any of the Statutory Regulations during execution of the contract.

23. SECURITY REGULATIONS: - The contractor and their representatives shall abide by the Rules and Regulations of the Administration Department/Security of ICC Unit at all stages of the work emanating from this contract. All vehicles of the contractor and persons engaged in the operations shall be subject to security check by Security on duty. The contractor shall arrange necessary entry passes from Security Department sufficiently in advance. HCL shall not be responsible for any delay caused due to security check.

24. SAFETY: - You will be responsible for faithful observance of all safety rules and norms with other rules, Regulations and laws as applicable and in force from time to time.

25. RECOVERY OF SUMS DUE: - Whenever any claim against the contractor for payment of any sum of money arises out of or under the contract, HCL/ICC Ghatsila shall be entitled to recover such sums from any sum when due or which at any time thereafter may become due from the contractor under this or any other contract with HCL and should this sum be not sufficient to cover the recoverable amount, the contractor shall pay to HCL/ICC, Ghatsila on demand the balance remaining due immediately.

26. LOSSES AND DAMAGES: Losses and damages caused to company's (HCL/ICC) property due to contractors or his employee's negligence shall be recoverable from the contractor's bill(s).

27. INDEMNITY BOND: -Before lifting the items for the re-babbitting the successful tenderer has to execute an Indemnity Bond for value equivalent to contract value on Non-Judicial Stamp Paper on the prescribed form duly notarized towards the safe custody of the material taken for repairing. Moreo

ver, due authorization is to be submitted for the personal for lifting the bearings.

- 28. ABSOLUTE INTEGRITY OF THE CONTRACT:** The Contractor and his persons shall maintain absolute integrity in carrying out the work and in case of any act detrimental to the interest of HCL/ICC including theft of Company's property by the Contractor or any of his persons, the contract shall be terminated / suspended without any notice and the balance work shall be executed through alternate sources at the risk and cost of the Contractor. In the event of suspension / termination of the work the Contractor shall not raise any claim for the period of suspension / termination, nor shall the Company (HCL/ICC) be liable to pay for it.
- 29.** The Contractor's personnel shall not divulge or disclose to any persons any details of office, operation process, technical know-how, security arrangements and administrative/organizational matters as all are confidential in nature.
- 30. GST, AS APPLICABLE:** GST as applicable will be paid extra by HCL if claimed in the bills. No subsequent claim on this account will be entertained by HCL. The Contractor should have a GST Registration number.
- 31. ENGINEER -IN-CHARGE/OFFICER-IN-CHARGE:**
- Name of E-I-C-Mr. Raman Kumar, Designation-Sr. Mgr. (Mech.), Phone No-7463846888, Email Id- ram_an_k@hindustancopper.com or any other officer nominated in his place shall be Engineer-in-charge (E-in-C) / Officer-in-charge (O-in-C) of the Contract. The contractor is required to carry out the job as per his instruction and advice. During final inspection his decision shall be final and binding on the contractor. The Contractor shall meet the E-in-C/O-in-C periodically and keep in communication with him for smooth and effective functioning of the work. The Contractor shall directly report to E-in-C/O-in-C of the contract, in case of any difficulty and follow his orders and directions.
- 32. VERIFICATION OF CHARACTER AND ANTECEDENTS:** The Agency shall keep proper record of all the documents regarding character and antecedents etc. of the personnel engaged by him and as and when required, the successful bidder shall submit the same to the Officer-in-charge for necessary verification.
- 33. EXCLUSION OF LIABILITY FOR PAYMENT OF INTEREST:**
- a) The company shall not be liable for payment of any interest on the amount that may become payable to the contractor under this contract and matters connected therewith. Any waiver of any clause of this contract can be done only by the competent authority of the company. It shall be contractor's responsibility to comply with all Acts, Rules and Regulations, modifications etc. applicable from time to time including strict compliance of all provisions of contract Labor (Regulation and Abolition) Act 1970 and Rules framed and notifications etc. issued there under. In case of violation of any law applicable to you, the contract shall liable to be terminated forthwith at your risk and cost.
- 34. INDEMNITY:** The Company shall have no liability whatsoever concerning the labour/staff deployed by the successful bidder for the purpose. The successful bidder shall keep the Company indemnified against all losses or damages of liability arising out of or imposed in due course of employment of labour by them during entire run of the contract. In case of theft or losses or pilferage of Company's property, due to negligence or carelessness of the labour, a joint enquiry represented by both ICC and the Contractor will be held and findings thereof shall be submitted to the Unit Head, whose decision shall be final and binding on both the parties.
- 35. SITE CLEARANCE:** Site clearance on completion of each and every job, work site has to be cleared in all respects to the satisfaction of E-in-C/O-in-C immediately after completion of jobs. Unwanted materials have to be shifted from the site as would be directed by E-in-C/O-in-C.
- 36. NO ASSIGNMENT:** The order when placed shall not be assigned to any other agency by the Supplier.
- 37. REGISTRATION OF UDYOG AADHAR MEMORANDUM (UAM) NUMBER:** Bidders who have their UAM number by Ministry of Micro Small and Medium Enterprises (MSME), should declare their UAM Number on Government e Marketplace Portal (GeM), failing which such bidders will not be able to enjoy the benefits as per Public Procurement Policy for MSEs Order, 2012 for the tenders invited electronically through GeM. MSME bidders, who have registered their UAM number with GeM, should submit proof of the same along with their offer for availing the benefits available to MSEs as contained in Public

c Procurement Policy for MSEs Order 2012, issued by MSME. MSEs owned by Scheduled Caste (SC) / Scheduled Tribe (ST) Entrepreneurs should also submit proof of the same along with their offer for procurement earmarked for MSEs owned by SC/ST.

In case MSME bidder has registered in Udyam Registration (UR) Portal, registration details is to be submitted along with their techno-commercial offer.

38. MSME:

- 1) Micro and Small Enterprises [MSEs] shall be eligible for availing all the benefits as laid down under the Public Procurement Policy for MSEs [Order 2012].
- 2) The condition of prior turnover and prior experience may be relaxed for Start-up Medium Enterprises [whether MSEs or otherwise] subject to meeting of quality and technical specifications of the tender.
- 3) The parties participating in the bidding shall have to provide documentary evidence of being registered as MSMEs to avail benefits available in this segment.
- 4) Declaration of UAM number by MSE bidders on CPP portal is mandatory, failing which such bidders will not be able to enjoy the benefits as per the Public Procurement Policy for MSE Order, 2012.

39. POLICY FOR MSEs UNDER PUBLIC PROCUREMENT BILL 2012:

Those MSEs which are registered with Districts Industries Centers (DICs) / Khadi & Village Industries Commissions (KVIC)/ Khadi & Village Industries Board (KVIB) / Coir Board/ NSIC/Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium enterprises are eligible for availing benefits under the Public Procurement Policy.

In tender, participating MSEs quoting price within band of L1+15% shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than an MSE. Such MSEs shall be allowed to supply up to 25% of total tendered value. In case of more than one such MSE, the supply will be shared proportionately.

Policy is meant for procurement of only goods produced and services rendered by MSEs.

Out of 25% target of annual procurement from MSEs, a sub target of 4% (Four per cent) is earmarked for procurement from MSEs owned by Scheduled Caste (SC)/ Scheduled Tribe (ST) Entrepreneurs and 3% for procurement from Women owned MSEs. However, in the event of failure of such MSEs to participate in tender process or meet tender requirements and L1 Price, 4% sub-target for procurement earmarked for MSEs owned by SC/ST Entrepreneurs will be met from other MSEs. MSEs participating against the tender should submit necessary documentary evidence for availing the facility of the policy. The MSEs owned by SC/ST has to submit caste certificate issued by competent authority along with the offer.

MSEs would be treated as owned by SC/ST entrepreneurs:

- i) In case of proprietary MSE, proprietor(s) shall be SC/ST
- ii) In case of partnership MSE, the SC/ST partners shall be holding at least 51% (Fifty-One per cent) shares in the unit
- iii) In case of Private Limited Companies, at least 51% (Fifty-One per cent) share shall be held by SC/ST promoters.

40. CONDITIONS FOR START-UP COMPANIES & STARTUP CERTIFICATION FROM DIPP: -

Subject to meeting of Quality and Technical specifications, HCL may consider allowing the participation of "Start up" companies with capability to execute the supply/ services, as per technical specifications/ perform the job as per scope of work specified in the tender and subject to meeting extant &

relevant guidelines of Government of India. The bidder who intends to participate as “Start-up” company should enclose the Certificate of Recognition issued by Department of Industrial Policy and Promotion, Ministry of Commerce & Industry, Govt. of India during submission of Technical bid.

- 41. PUBLIC PROCUREMENT (PREFERENCE TO MAKE IN INDIA), ORDER 2017** is applicable for the tender and takes into account Government of India notification No. P-45021/2/2017-PP (BE-II) dated 15.06.2017 (subsequently revised vide Orders dated 28.05.2018, 29.05.2019, 04.06.2020 & 16.09.2020) for procurement of any goods or services from any category of bidders, or provide preference to bidders on the grounds of promotion of locally manufactured goods.

All the provisions of the latest revision of the Order P-45021/2/2017-PP (BE-II) dated 16.09.2020 is applicable for this procurement case.

Class-I and Class-II local supplier of enquired items are eligible to participate in the bid as defined in Public procurement (Preference to make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. However, the new bidders, if qualified, shall be put to trials as detailed in the tender documents. Bids are to be submitted/ uploaded in complete accordance with enclosed Tender Documents.

Class-I and Class -II Local suppliers as defined in PPP-MII order 2017 and revision thereof are eligible to participate in the bid. The minimum local content must be 50% for Class-I local supplier and must be minimum 20% and less than 50% for class-II supplier at present. Accordingly, all the bidders are required to submit required Certificate indicating that the bidder is Class-I or Class -II local supplier with minimum percentage of local content in their product as per Public procurement (Preference to Make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. The certificate is to be issued by the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.

Allocation of tendered qty.: - The guidelines for distribution of order quantity shall be as per clause 3B of the Public Procurement (Preference to Make in India), Order 2017- Revision regarding dated 16.09.2020 & subsequent revisions thereof.

- 42. RESTRICTION UNDER RULE 144(xi) OF THE GENERAL FINANCIAL RULES (GFRs) 2017:**

Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of Goods, Service including (consultancy services & non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the competent authority.

Vide office memorandum ref. No.F.12/1/2021-PPD (Pt.), dated 2nd March 2021, relaxation is provided for the procurement of spares parts and other essential service support like Annual Maintenance Contract (AMC) /Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) of their authorized agents, shall be exempted from the requirement of registration as mandated under Rule 144 (xi) of GFRs 2017.

- 43.** All the clauses of Order No. F. No. 6/18/2019-PPD dated 23.07.2020 issued by Ministry of finance (Dept of Expenditure) shall be applicable against the tender. The same is available at website <https://doe.gov.in/procurement-policy-divisions>

All the bidders are required to submit compliance certificate as asked in the above order No. F. No. 6/18/2019-PPD dated 23.07.2020. The model certificate is given below:

Model certificate for tenders:

“We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India. We certify that bidder M/s. ____ (name of the bidder) is not from such a country or if from such a country, has been registered with the Competent Authority. We hereby certify that bidder M/s. ____ (Name of bidder) fulfills all the requirement in this regard and is eligible to be considered against the tender.” If the above certificate given by a bidder, whose bid is accepted, is

s found to be false, this would be a ground for immediate rejection of bid/termination of contract and further legal action in accordance with law.

44. DECLARATION OF RELATIONSHIP WITH HCL EMPLOYEE:

It is compulsory for a bidder to declare whether the proprietor/ partner/ Director of the firm has any relation with any employee working in the Units concerned or Director of HCL and if so, give the details and the relationship.

II) CLAUSES PERTAINING TO LEGAL ASPECTS

- 1. PRICE REDUCTION:** Compensation of loss on account of late delivery/performance shortfall (actually incurred as well as notional) where loss is pre-estimated and mutually agreed to is termed as Price Reduction. The procuring Entity is allowed to recover loss from the supplier/ contractor.

Quantum of Price Reduction

The Procuring Entity may recover from the contractor, as agreed, the Price Reduction a sum equivalent to 0.5 (half) per cent of the prices of any portion of stores and/or service delivered late, for each week or part thereof of delay. The total damages shall not exceed 10 (ten) per cent of the value of delayed goods/service or both. The Price Reduction cannot exceed the above amount of 10% stipulated in the original awarded contract value including GST. Financial loss due to delayed delivery/service or both should be calculated for claim of Price Reduction.

2. EVENTS OF DEFAULT:

The following events shall be termed as Events of Default:

If the Contractor shall not execute the contract in the manner as stipulated in the contract or if it, in the opinion of HCL:

- a) Does not execute the contract in conformity with the provisions of the contract, or
- b) Substantially suspends any part of its execution for a period of fourteen (14) days without authority from HCL, or
- c) Fails to carry on and execute the contract to the satisfaction of HCL, or
- d) Commits or permits any breach of any of the provisions of the contract (on the part of the insurer to be performed or observed), or persists in any of the above mentioned breach of the contract for fourteen (14) days, after notice in writing shall have been given to the contractor by HCL requiring such breach to be remedied, or
- e) Abandons the work(s), or
- f) During the continuance of the contract, becomes bankrupt, makes any arrangement or composition with its creditors, or permits any execution to be levied or goes into liquidation other than for the purpose of amalgamation or reconstruction, or
- g) Does not perform as per the agreed programme submitted by the contractor.

3. TERMINATION DUE TO EVENTS OF DEFAULT:

- a) If HCL decides to terminate this contract, it shall in the first instance issue Preliminary Notice to the contractor. Within 15 days of receipt of the Preliminary Notice, the contractor shall submit to HCL in sufficient detail, the manner in which it proposes to cure the underlying Event of Default (the "Contractor's Proposal to Rectify"). In case of non submission of the Contractor's Proposal to Rectify within the said period of fifteen (15) days, HCL shall be entitled to terminate this contract by issuing Termination Notice, and to appropriate any Security, if subsisting.
- b) In the Contractor's Proposal to Rectify is submitted within the period stipulated thereof, the contractor shall have to its disposal a further period of fifteen (15) days to remedy / cure the underlying Event of Default. If, however, it fails to remedy / cure the underlying Event of Default within the stated period, HCL shall be entitled to terminate this contract and to appropriate the Security, if subsisting.

Penal action like forfeiting of Security Deposit, debarment for future tenders of HCL/ICC for one year may be taken as deemed fit.

4. FORECLOSURE OF CONTRACT IN FULL OR IN PART:

If at any time after acceptance of the Tender, HCL shall decide to foreclose or reduce the scope of the work(s) and hence not require the whole or any part of the work to be carried out, the Engineer-in-Charge shall give 10 days' notice in writing to that effect to the contractor, provided that: In the event, any such action is taken by HCL, the contractor shall be paid full amount for the up to date quantum of work executed at work site as per billing schedule under the relevant items of work under this contract and in addition, a reasonable amount as certified by the Engineer-in-Charge or any other agency appointed by HCL for those supplied items which could not be utilized for execution of the work to the full extent because of the foreclosure.

5. FORCE MAJEURE EVENTS:

If at any time during the continuance of this contract, the performance in whole or in part by either party of any obligation under this contract shall be prevented or delayed by reason of war, act of hostility of public enemy, civil disruption or sabotage, fires, floods, explosions, epidemics, quarantine restrictions or acts of God (here-in-after referred to as events), provided notice of the happening of any such eventuality is given by the either party to the other within 21 days from the date of occurrence thereof, neither party shall by reasons of such event be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non-performance or delay in performance / execution under the contract. Provided also that such performance / execution under the contract should commence as soon as practicable, after such event has come to an end or ceased to exist and the decision of HCL as to whether the performance in whole or in part or any execution under this contract is prevented or delayed by reasons of any such event for a period exceeding 60 days, either party may opt to terminate the contract. If the contract is terminated under this clause, HCL shall have the liberty to take over from the contractor at a reasonable price, all unused, undamaged and acceptable materials, machinery, equipments, etc. at the site, being used for the performance of the contract and in the possession of the contractor at the time of such termination of such portion thereof as HCL may deem it fit, except such materials, equipments, etc. that the contractor may wish to retain with the concurrence of HCL elect to retain. It is also understood in addition that this Force Majeure clause will cover parties' inability to perform on account of change in law or imposition of rules or restrictions by the Government.

6. AMICABLE RESOLUTION:

- a) Save where expressly stated to the contrary in this contract, any dispute, difference or controversy of whatever nature between the Parties, howsoever arising under, out of or in relation to this contract including disputes, if any, with regard to any acts, decision or opinion of the Engineer-in-Charge and so notified in writing by either Party to the other (the "Dispute") shall in the first instance be attempted to be resolved amicably in accordance with the procedure set forth in part (b) below.
- b) Either Party may require such Dispute to be referred to the work in charge of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicably settled within fifteen (15) days of such meeting, either Party may refer the Dispute in accordance with the provisions of part (c) below.
- c) In the event that any Dispute has not been resolved as per the provisions of (b) above, the same shall be referred to the Director or a person of equivalent designation, of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicably settled within fifteen (15) days of such meeting between the two, either Party may refer the Dispute to arbitration in accordance with the provisions of Arbitration clause.

7. ADMINISTRATIVE MECHANISM FOR RESOLUTION OF CPSES DISPUTES (AMRCD):

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial Contract(s) between Central Public Sector Enterprises (CPSEs)/Port Authorities inter se and also between CPSEs and Government Departments/Organizations (excluding disputes concerning Railways, Income-Tax, Customs & Excise), such dispute or difference shall be resolved through the Administrative Mechanism for Resolution of CPSES Disputes (AMRCD) in accordance with DPE OM No.

DPE02/0001/2023-AMRCD-FTS-13578 dated 08.12.2025, as amended from time to time. The decision of the AMRCD shall be final and binding on the Parties.

8. ARBITRATION:

Any dispute(s) of difference(s) not more than one crore of any kind whatsoever arising between the parties out of, or relating to the construction, meaning, scope, operation or effect of the contract or its validity or its breach thereof, if not settled mutually, shall be referred by the parties to this contract for Arbitration under the Arbitration and conciliation Act, 1996 and any amendments thereof, and the provisions there under, and the award made in pursuance thereof shall be binding on the parties.

The Arbitrator will be appointed within 30 days of reference to the arbitration. A sole Arbitrator will be appointed by the mutual consent of the parties to the contract, who according to Arbitration and conciliation Act, 1996 and any amendments thereof, will not stand in conflict of interest with any of the organizations. A declaration to the effect shall be submitted by the Arbitrator, to guarantee impartiality in the proceedings.

In the event of such an arbitrator to whom the matter is originally referred, being transferred or has vacated his office because of retirement, or resignation or otherwise or refuses to act or is incapable of acting for any reason whatsoever, the appointment of arbitrator in his place will be done by mutual consent of the Parties to the Contract, who again would not stand in any conflict of interest with both the parties such person(s) shall be entitled to proceed from the stage at which his predecessor left it.

The duration of proceedings and the fee structure will be governed by the 1996 Act, and any amendments thereof. The venue of the arbitration shall be ICC Unit. The award of the arbitrator shall be final and binding on the parties. Any dispute, which arises at any point of time out of arbitration, shall have the jurisdiction of the court of Ghatsila/Jamshedpur.

Subject to the above, the provision of Arbitration and conciliation Act, 1996 and the rules there under and the statutory modifications thereof shall govern such arbitration proceedings and shall be deemed to apply and be incorporated in this contract.

9. Disputes which are not covered under para 7 (AMRCD) & 8 (Arbitration) above shall be referred to the Commercial Courts as per The Commercial Courts Act, 2015.

10. JURISDICTION OF COURT:

All disputes pertaining to this contract shall be subject to the jurisdiction of Ghatsila/Jamshedpur Court only.

11. LIEN:

The Company shall have a lien on all amounts that may become due and payable to the Contractor under this or any another contract/transaction of any nature whatsoever between the Company and Contractor including the Earnest Money and receipt of any debit or sum that may become due and payable to the Company or to any one by the Contractor with either along or jointly or transaction or any contract whatsoever between the Company and the Contractor and the Company shall be entitled to deduct the said debit or sum due and payable to the Company (of which the Company shall be the sole judge) or to any one by the Contractor from the amounts aforesaid and the Earnest Money and the Security Deposit without prejudice to the rights and remedies available in the Company.

Annexure-IV

(Earnest Money Deposit as Bank Guarantee)

PROFORMA FOR BANK GUARANTEE FOR EARNEST MONEY DEPOSIT

(To be executed on non-judicial stamped paper of appropriate value)

B. G. No. _____

Date: _____

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1. WHEREAS M/s. Hindustan Copper Limited (A Government of India Enterprise), having its Unit/Office

at(UNIT/OFFICE ADDRESS ISSUING THE TENDER) (hereinafter called "The Company" which expression shall unless repugnant to the subject or context includes its legal representatives, successors and assigns) has issued Tender paper vide its Tender No..... dt..... for.....(hereinafter called "the said tender") to M/s.(hereinafter called the said Tenderer(s)" which expression shall unless repugnant to the subject or context includes their legal representatives, successors and assigns and as per terms and conditions of the said tender, the tenderer shall submit a Bank Guarantee for Rs.....(Rupeesonly) towards earnest money in lieu of cash.

2. WEBank having its branch office atdo hereby undertake to pay the amount due and payable under this guarantee without any demur, merely on a demand from the Company stating that in the opinion of the company which is final and binding, the amount claimed is due because of any withdrawal of the tender or any material alteration to the tender after the opening of the tender by way of any loss or damage caused to or would be caused or suffered by the Company by reason of any breach by the said tenderers (s) of any of the terms and conditions contained in the said tender or failure to accept the Letter of Intent Agreement or that the amount covered under this Guarantee is forfeited. Any such demand made on the Bank by the Company shall be conclusive as regards the amount due and payable by the Bank under this guarantee.

3. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs..... (Rupees.....only).

4. We undertake to pay to the Company any money so demanded notwithstanding any dispute

Or disputes raised by the tenderer(s) in any suit or proceeding pending before any office, court

Or tribunal relating thereto our liability under this present guarantee being absolute and unequivocal .

5. The payment so made by us under this bond shall be a valid discharge of our liability for payment there under. Our liability to pay is not dependent or conditional on the Company proceeding against the tenderer.

6. The guarantee herein contained shall not be determined or affected or suspended by the liquidation or winding up, dissolution or change of constitution or insolvency of the said tenderer(s) but shall in all respect and for all purposes be binding and operative until payment of all money due or liabilities under the said contract(s)/ Order(s) are fulfilled.

7. WEBank Ltd. further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the finalization of the said tender and that it shall continue to be enforceable till the said tender is finally decided and order placed on the successful tenderer(s) and or till all the dues of the company under or by virtue of the said tender have been fully paid and its claims satisfied or discharged or till a duly authorized officer of the company certifies that the terms and conditions of the said tender have been fully and properly carried out by the said tenderer(s) and accordingly discharges the guarantee.

8. That the Company will have full liberty without reference to us and without affecting this guarantee to postpone for any time or from time to time. The exercise of any of the power of the Company under the tender.

9. Notwithstanding anything contained herein before, our liability shall not exceed Rs..... (Rupees.....only) and shall remain in force till.....Unless a demand or claim under this Guarantee is made on us within three months from the date of expiry, we shall be discharged from all the liabilities under this guarantee.

10. We.....Bank; lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Company in writing. We further undertake to keep this Guarantee renewable

wed from time to time on the request of Tenderer(s).

Date.....Bank

Corporate Seal of the Bank By its constitutional Attorney

On behalf of the Bank With seal & signature code

Details of Persons Issuing the BG:

Name-----

Address for Correspondence: -----

Telephone & Fax No.

E-mail:

Annexure-V

(Security Deposit as Bank Guarantee)

-

PROFORMA OF BANK GUARANTEE TOWARDS SECURITY DEPOSIT

(On Non-judicial stamp paper of appropriate value)

To,

HINDUSTAN COPPER LTD.

.....

.....

.....

Dear Sirs,

M/s.....upon being awarded the work ofof Hindustan Copper Limited at.....under Tender/LOI/Work Order No.....approached us with the request to furnish Hindustan Copper Limited ata Bank Guarantee for Rs.....only (Rupees.....only) towards security deposit. At their request and in consideration of the promises we.....have agreed to give guarantee as hereinafter mentioned.

1. We.....hereby agree and undertake that if in your opinion any default is made by the said M/s.in performing any of the terms and/or conditions of the agreement or if in your opinion he commits any breach of agreement or there is any demand by you against the said M/s.....then on notice to us by you we shall on demand without demur and without reference to the said M/s.....immediately pay to you, in any manner in which you may direct, the said

d amount of Rs.....only (Rupees.....only) or such portion thereof as may be demanded by you not exceeding the said sum and as you may from time to time require our liability to pay is not dependent or conditional on your proceeding against the said M/s.....and we shall be liable to pay the aforesaid amount as and when demanded by you merely on a claim being raised by you and even before any legal proceedings are taken against the said M/s.....

2. You will have full liberty without reference to us and without affecting this guarantee, to postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the contract with the said M/s..... to enforce or to forbear from endorsing any power or right or by reasons of time under law relating to sureties would be for the provision have the effect of releasing.

3. Your right to recover the said sum of Rs.....only (Rupees.....only) from us in manner aforesaid will not be affected or suspended by reason of the fact that any disputes have been raised by the said M/s.....and/or that at any dispute or disputes are pending before any officer, tribunal or court.

4. Our guarantee herein contained shall not be determined or affected by the liquidation or winding up of dissolution or change or constitution or in solvency of the said M/s..... but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liability or liabilities.

5. Our liability under this guarantee is restricted to Rs.....only (Rupees.....only). Our guarantee shall be valid up toand we are liable to pay the guaranteed amount or any part thereof under the Bank Guarantee only & only if you serve upon us a claim or demand or a suit/action to enforce a claim under guarantee is filed against us on or before.....

6 We have power to issue this guarantee in your favour under Memorandum and Articles of Association and this undersigned has full power to do under the power of attorney dated.....granted to him by the Bank

7 The BG shall be operable including encashment at issuing bank's any local branch in Ghatsila / Jamshedpur

Yours faithfully,

.....

.....

..... (Bank)

(Signature of a person duly authorized to sign on behalf of the Bank).

(Insurance Surety Bond as Earnest Money Deposit)

SAMPLE PROFORMA OF INSURANCE SURETY BOND IN LIEU OF EARNEST MONEY DEPOSIT

SURETY BOND NO: _____

DATED: _____

VALID UPTO: _____

To,

HINDUSTAN COPPER LIMITED

Dear Sirs,

In consideration of HINDUSTAN COPPER LIMITED _____

(hereinafter called "the COMPANY" which expression shall include its successors and assigns), having agreed inter alia to consider the tender of (Name of the Tenderer) _____ having its Head Office/ Registered Office at _____ (Address of the Tenderer) (hereinafter called the "Tenderer" which expression shall include its successors and assigns), for the work of (Name of the Project/Work) _____ at to be awarded under Tender No. _____ upon the Tenderer furnishing an undertaking from the Surety Insurer as hereinafter appearing in lieu of cash deposit of the Earnest Money.

We _____ (Name of the Surety Insurer) _____, an insurance company/a body corporate constituted/Registered under the Act, having our _____ Head Office/Registered Office at _____ (hereinafter called the "Surety Insurer" which expression shall include its successors and assigns), at the request of the Tenderer and with the intent to bind the "Surety Insurer" and its successors and assigns do hereby unconditionally and irrevocably undertake to pay the COMPANY at Kolkata forthwith on first demand without protest or demur or proof or satisfaction or condition and without reference to the Tenderer, all sums payable by the Tenderer as and by way of Earnest Money to the COMPANY, upto an aggregate limit of (Amount in figures and words) _____.

AND THE SURETY INSURER -DOTH HEREBY FURTHER AGREES AS FOLLOWS:

1. This Insurance Surety Bond shall be a continuing guarantee and shall remain in full force and effect for all claims or demands made by the COMPANY on the Surety Insurer until the COMPANY discharges this Insurance Surety Bond subject, however, that the COMPANY shall have no claims under this Insurance Surety Bond after the midnight of _____ or any written extension(s) thereof. PROVIDED that if the aforesaid work tendered for or any part thereof shall be awarded to the Tenderer on or before the said date, whether on the basis of accompanying tender or any other basis, then the validity of this Insurance Surety Bond shall stand automatically extended for all claims and demands made by the COMPANY for further three months.
2. The COMPANY shall have the fullest liberty without reference to the Surety Insurer-and without affecti

ing in any way the liability of the Surety Insurer under this Insurance Surety Bond at any time and/or from time to time any wise to postpone and/or vary any of the powers, rights, and obligations exercisable by the COMPANY against the Tenderer and either to enforce or to forbear from enforcing all or any of the terms and conditions of or governing the said Tender and/or any contract consequent upon any award of work or the said Earnest Money Deposit or the securities available to the COMPANY or any of them and the Surety Insurer- shall not be released from its liability under these Presents and the liability of the Surety Insurer hereunder shall remain in full force and effect notwithstanding any exercise by the COMPANY of the liberty with reference to any or all the matters aforesaid or by reason of any other act, matter or thing whatsoever which under law relating to the sureties or otherwise which could, but for this provision have the effect of releasing the Surety Insurer from all or any of its obligations hereunder or any part thereof, and the Surety Insurer specifically waives any and all contrary rights whatsoever.

3. It shall not be necessary for the COMPANY to proceed against the Tenderer before proceeding against the Surety Insurer and the Insurance Surety Bond herein contained shall be enforceable against the Surety Insurer as principal debtor notwithstanding the existence of any other undertaking or security for any indebtedness of the Tenderer to the COMPANY and notwithstanding that any such security shall at the time when claim is made against the Surety Insurer or proceedings taken against the Surety Insurer hereunder, be outstanding or unrealised.
4. The amount stated by the COMPANY in any demand, claim or notice made with reference to this guarantee shall as between the Surety Insurer and the COMPANY for the purpose of these Presents be conclusive of the amount payable by the Surety Insurer to the COMPANY hereunder.
5. The liability of the Surety Insurer to the COMPANY under this Insurance Surety Bond shall remain in full force and effect notwithstanding the existence of any difference or dispute between the Tenderer and the COMPANY, the Tenderer and the Surety Insurer and/or the Surety Insurer and the COMPANY or otherwise howsoever touching these Presents or the liability of the Tenderer to the COMPANY, and notwithstanding the existence of any instructions or purported instructions by the Tenderer or any other person to the Surety Insurer not to pay or for any cause withhold or defer payment to the COMPANY under these Presents, with the intent that notwithstanding the existing of such difference, dispute or instructions, the Surety Insurer shall be and remain liable to make payment to the COMPANY in terms thereof.
6. This Insurance Surety Bond shall not be determined or affected by the liquidation or winding up or dissolution or change of constitution or insolvency of the Tenderer or any change in the legal constitution of the Surety Insurer or the COMPANY.
7. Without prejudice to any other mode of service, a demand or claim or other communication may be transmitted by the COMPANY to the Surety Insurer either by email, post or by fax. If transmitted by fax/email, the transmission shall be complete as soon as acknowledged by Surety Insurer.
8. Notwithstanding anything contained herein :
9. (i) The Surety Insurer's liability under this Insurance Surety Bond shall not exceed _____
_____ (Amount in figures & words).
- (ii) This guarantee/undertaking shall remain in force upto and any extension(s) thereof; and
- (iii) The Surety Insurer shall be released and discharged from all liability under this guarantee/undertaking unless a written claim or demand is issued to the Surety Insurer's on or before _____
_____ or the date of expiry of any extension(s) thereof if this Insurance Surety Bond has been extended.

The Surety Insurer doth hereby declare that Shri _____ who is authorised to sign this Insurance Surety Bond on behalf of the Surety Insurer and to bind the Surety Insurer thereby .

This _____ day of _____ 20_____.

Yours faithfully

Signature: _____

Name & Designation: _____

Name of Issuing Branch: _____

Complete Postal Address of Issuing Branch: _____

Telephone No. _____

Fax No. _____

Email Address of the Insurance Surety Bond issuing Surety Insurer's Officer/
branch _____

Annexure-VII

(Insurance Surety Bond as Security Deposit)

SAMPLE PROFORMA OF INSURANCE SURETY BOND IN LIEU OF SECURITY DEPOSIT/ INITIAL SECURITY DEPOSIT/ ADDITIONAL INSURANCE SURETY BOND

SURETY BOND NO: _____

DATED: _____

VALID UPTO: _____

TO,

HINDUSTAN COPPER LIMITED

Dear Sirs,

In consideration of HINDUSTAN COPPER LIMITED _____

(hereinafter called "the COMPANY" which expression shall include its successors and assigns), having awarded certain work for and relative to _____ (Name of the Project/Work) to _____ (Name and address of the Contractor) (hereinafter called "the Contractor" which expression shall include its successors and assigns), upon certain terms and conditions inter-alia mentioned in the COMPANY's Letter of Intent/Letter of Acceptance/Work Order No. _____ dated _____ read with the relative Tender Documents (hereinafter collectively called "the Contract", which expression shall include any formal contract entered into between the COMPANY and the Contractor in supersession of the said Letter of Acceptance/Work Order No., etc., and all amendments and/ or modifications in the contract) inclusive of the condition that the COMPANY may accept a Insurance Surety Bond of a SURETY INSURER in India in lieu of Cash Deposit of the Initial Security Deposit as provided for the said Tender Documents:

We _____ (Name of the Surety Insurer), a body registered/constituted under the Act, having our Registered Office/Head Office at (hereinafter called "the Surety Insurer" which expression shall include its successors and assigns), at the request of the Contractor and with the intent to bind the Surety Insurer and its successors and assigns, do hereby unconditionally and irrevocably undertake to pay to the COMPANY forthwith on first demand without protest or demurrer or proof or satisfaction and without reference to the contractor up to an aggregate limit of Rs. _____ (Rupees _____ only).

AND the Surety Insurer doth hereby further agrees as follows:

- (i) This Insurance Surety Bond shall be a continuing guarantee and shall remain valid and irrevocable for all claims of the COMPANY upon the Surety Insurer made up to the midnight dated _____ of provided that the Surety Insurer shall upon the written request of the COMPANY made upon the Surety Insurer at any time within 6 (six) months from the said date extend the validity of the Insurance Surety Bond by a further 6 (six) months so as to enable claims to be made under this Insurance Surety Bond by a further 6 (six) months from the said date with the intent that the validity of this Insurance Surety Bond shall automatically stand extended by a further 6 (six) months upon such request by the COMPANY.
- (ii) The COMPANY shall have the fullest liberty without reference to the Surety Insurer and without affecting in any way the liability of the Surety Insurer under the Insurance Surety Bond, at any time and/or from time to time to amend or vary the Contract and/or any of the terms and conditions thereof or relative to the said Initial Security Deposit or to extend time for performance of the said Contract in whole or part or to postpone for any time and/or from time to time any of the obligations of the Contractor and either to enforce or forbear from enforcing any of the terms and conditions of or governing the said Contract or the said Initial Security Deposit of the securities available to the COMPANY or any of them and the Surety Insurer shall not be released from its liability under these presents and the liability of the Surety Insurer hereunder shall remain in full force and effect notwithstanding any exercise by the COMPANY of the liberty with reference to any or all the matters aforesaid or by reason of time being given to the Contractor or any other forbearance, act or omission on the part of the Contractor or of any indulgence by the COMPANY to the Contractor or of any other act, matter or thing whatsoever which under the law relating to sureties or otherwise which could but for the provision have the effect of releasing the Surety Insurer from its liability hereunder or any part thereof and the Surety Insurer hereby specifically waives any and all contrary rights whatsoever.
- (iii) The obligations of the Surety Insurer to the COMPANY hereunder shall be as principal to principal and shall be wholly independent of the contract and it shall not be necessary for the COMPANY to proceed against the Contractor before proceeding against the Surety Insurer and the Insurance Surety Bond herein contained shall be enforceable against the Surety Insurer notwithstanding the existence of any other Insurance Surety Bond or security for any indebtedness of the Contractor to the COMPANY (including relative to the said Security Deposit) and notwithstanding that any such undertaking or security shall at the time when claim is made against the Surety Insurer or proceedings taken against the Surety Insurer hereunder, be outstanding or unrealized.
- (iv) The amount stated by the COMPANY in any demand, claim or notice made with reference to this guarantee shall as between the Surety Insurer and the COMPANY for the purpose of these presents be conclusive of the amount payable by the Surety Insurer to the COMPANY hereunder.
- (v) The liability of the Surety Insurer to the COMPANY under this Insurance Surety Bond shall remain in full force and effect notwithstanding the existence of any difference or dispute between the Contractor and the COMPANY, the Contractor and the Surety Insurer and/or the Surety Insurer and the COMPANY or otherwise howsoever touching or affecting these presents for the liability of the Contractor to the COMPANY, and notwithstanding the existence of any instructions or purported instructions by the Contractor or any other person to the Surety Insurer not to pay or for any cause withhold or defer payment to the COMPANY under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the Surety Insurer shall be and remain liable to make payment to the COMPANY in terms hereof.

- (vi) The Surety Insurer shall not revoke this undertaking during its currency except with the previous consent of the COMPANY in writing and also agrees that any change in the constitution or dissolution or liquidation or winding up of the Contractor or the Surety Insurer or the COMPANY shall not discharge the Surety Insurer's liability hereunder.
- (vii) Without prejudice to any other mode of service, a demand or claim or other communication may be transmitted by fax/email. If transmitted by fax, the transmission shall be complete as soon as acknowledged by Surety Insurer.
- (viii) Notwithstanding anything contained herein:
- (a) The Surety Insurer's liability under this guarantee/undertaking shall not exceed (Amount in figures & words);
 - (b) This guarantee/ undertaking shall remain in force up to and any extension(s) thereof; and
 - (c) The Surety Insurer shall be released and discharge from all liability under this guarantee/ undertaking unless a written claim or demand is issued to the Surety Insurer on or before _____ or the date of expiry of any extension(s) thereof if this Insurance Surety Bond has been extended.
- (ix) The Surety Insurer doth hereby declare that Shri _____ (Name of the person signing on behalf of the Surety Insurer) who is _____ (his designation), is authorized to sign this undertaking on behalf of the Surety Insurer and to bind the Surety Insurer hereby.

Dated this day of _____ 20_____.

Yours faithfully,

Signature:

Name & Designation:

Name of Issuing Branch:

Complete Postal Address of Issuing

Branch:

Telephone No.:

Fax No.:

Email Address of the Surety Insurer issuing

Insurance Surety Bond

Officer/Surety Insurer Branch

Annexure-VIII

(Drawing)

Drawing provided in Buyer Added Bid Specific ATC

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6. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

7. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Hindustan Copper Limited

Account No.

00000011524102778

IFSC Code

SBIN0001484

Bank Name

State Bank of India

Branch address

Moubhandar, Dist. East Singhbhum, Jharkhand-832103

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

8. Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and

published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---